

26VECV03210 26VECV03210

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Case Number: 26VECV03210 Hearing Date: September 24, 2026 Dept: T

26VECV03210 Exposition v Clinca

[TENTATIVE]

ORDER: Defendants Clinica De Los Angeles Medical Group, Inc. and Mohamad Yaghi's Demurrer to the Complaint is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. Leave to amend Plaintiff Exposition Market SPE 2020, LLC is limited to curing the pleading defects identified and not to add new causes of action or new parties.

Defendants

Clinica De Los Angeles Medical Group, Inc. and Mohamad Yaghi's Motion to Strike is MOOT as to the request for punitive damages and otherwise GRANTED WITH 20 DAYS LEAVE TO AMEND.

Introduction

Defendants Clinica De Los Angeles Medical Group, Inc. (Clinica) and Mohamad Yaghi (Yaghi) (collectively, Defendants) demurred to Plaintiff Exposition Market SPE 2020, LLC's (Plaintiff) Complaint. Defendants' demurrer placed into issue the second cause of action (COA) for waste and the third COA for negligence. Defendants moved to strike Plaintiff's requests for punitive damages and allegations as to the monthly rent, a reference to 73%, and the reference to the terms of the lease.

Discussion

Defendants argued that the two tort COAs fail to plead sufficient supportive facts because waste and the duty of care, stemming from alleged damage to

walls, are actionable against the person in possession of the property. (Cornelison v. Kornbluth (1975) 15 Cal.3d 590, 597-598.) Defendants argued that Plaintiff's allegations admitted that Defendants were not in possession of the property due to the assignment of the lease to Co-Defendants Universal Community Health Center (Universal) and Edgar Chavez (Chavez) (Universal and Chavez, collectively referred to as Co-Defendants) on December 20, 2021. (Compl. pars. 26-27 and Exh. 3.) Defendants further argued that the Complaint failed to allege any wrongdoing specific to Defendants because the allegations combine all the party defendants as being liable. Without possession of the property and express fact allegations as to Defendants' acts in damaging the property, the COAs for waste and negligence are insufficiently pled with supportive facts to allege the COAs. Further, the Court noted that a full assignment of the lease terminates the assignor's privity of estate with the landlord, but it does not affect privity of contract. (Vallely Investment, L.P. v. BancAmerica Commercial Corp (2001) 88 Cal.App.4th 816, 822.) Without facts to allege any privity of estate between Plaintiff and Defendants, the claims for waste and negligence related to damages to the walls of the property are insufficiently pled. Further, Plaintiff fails to plead any specific wrongful conduct against Defendants to plead that Defendants caused the damages to the wall, separate and apart from any alleged possessory interest or control held by Defendants. The Court finds Defendants' argument to be persuasive.

Plaintiff asserted that the two COAs are sufficiently alleged with supportive fact pleading because Defendants, along with Co-Defendants, owed a duty to preserve and protect the Property per the Lease. However, the argument does not respond to the issue presented in the demurrer. Contractual obligations held by Defendants for damages are not at issue. The issue is whether tort liability is sufficiently alleged.

Plaintiff further asserted that Yaghi is sued both individually and as a dba to Clinica. However, the argument again misses the issue put forth in the demurrer. Whether Yaghi is sued as an individual or as a dba is irrelevant to whether the allegations can overcome the assignment of the lease and the resulting termination of any control or possessory interest by Defendants.

Both parties requested that leave to amend be granted. The Court grants leave to amend because this is the first review of the pleading by the Court.

The Demurrer to the second and third COAs is SUSTAINED WITH LEAVE TO AMEND.

Defendants' motion to strike against punitive damages is MOOT because the punitive damages are dependent upon the second and third COAs. With the sustaining of the demurrer, it remains to be seen whether the second and third COAs can survive the pleading stage.

As to the allegations regarding the minimum rent, the common-area fees, and the lease term, Plaintiff submitted to the argument that the fact allegations in the Complaint are not supported by the terms of the Lease. However, Plaintiff requests leave to amend to correct the allegations so that the allegations conform to the Lease provisions. Because no dispute is presented on these issues, the Court finds the motion to strike as to the minimum rent, the common-area fees, and the lease term to be persuasive.

The motion to strike the allegations as to the minimum rent, the common-area fees, and the lease term is GRANTED WITH LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.